

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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RACHEAL WILLIAMS,

SUMMONS

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

THE CITY OF NEW YORK, P.O. LUIS D. SANDRES AND
P.O. ANDREA NIEVESSANTIAGO,

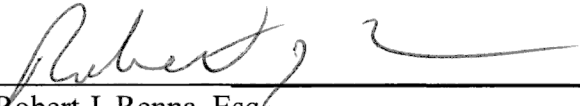
The basis of venue is:
Plaintiff's Residence

Defendants.
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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 20, 2024



Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
RACHEAL WILLIAMS
50 Court Street, Suite 1001
Brooklyn, NY 11201
(718) 422-1003
File No.: 23-078

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. LUIS D. SANDRES
c/o NEW YORK CITY POLICE DEPARTMENT (Police Service Area #3)
25 Central Avenue
Brooklyn, NY 11206

P.O. ANDREA NIEVESSANTIAGO
c/o NEW YORK CITY POLICE DEPARTMENT (Police Service Area #3)
25 Central Avenue
Brooklyn, NY 11206

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
RACHEAL WILLIAMS,

**VERIFIED
COMPLAINT**

Plaintiff(s),

-against-

THE CITY OF NEW YORK, P.O. LUIS D. SANDRES AND
P.O. ANDREA NIEVESSANTIAGO,

Defendant(s).
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Plaintiff, by his attorneys, **ROBERT J. RENNA, P.C.**, complaining of the Defendants,
respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at the time of the commencement of this action, plaintiff RACHEAL WILLIAMS, was and still is a resident of the County of Kings, City and State of New York.
2. That the cause of action alleged herein arose in the County of Kings, City and State of New York.
3. That at all times herein mentioned, defendant THE CITY OF NEW YORK was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned, defendant THE CITY OF NEW YORK, maintained a police department that was under the control and direction of the defendant, THE CITY OF NEW YORK.
5. That at all times herein mentioned, defendant THE CITY OF NEW YORK operated, managed, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.

6. That prior hereto on September 24, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

7. That on February 13, 2024, pursuant to the General Municipal Law, a statutory 50-H hearing of the Plaintiff, RACHEAL WILLIAMS was held.

8. That at all times herein mentioned, defendant P.O. LUIS D. SANDRES was and is employed by THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

9. That at all times herein mentioned, defendant P.O. LUIS D. SANDRES was acting within the course and scope of his employment with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

10. That at all times herein mentioned, defendant P.O. LUIS D. SANDRES was acting under color of state law.

11. That at all times herein mentioned, defendant P.O. ANDREA NIEVESSANTIAGO was and is employed by THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

12. That at all times herein mentioned, defendant P.O. ANDREA NIEVESSANTIAGO was acting within the course and scope of her employment with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

13. That at all times herein mentioned, defendant P.O. ANDREA NIEVESSANTIAGO was acting under color of state law.

14. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

16. That on March 8, 2023, at approximately 11:53 p.m., Plaintiff, RACHEAL WILLIAMS was lawfully in front of in front of 1103 Broadway, County of Kings, City and State of New York.

17. That on March 8, 2023, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. LUIS D. SANDRES, P.O. ANDREA NIEVESSANTIAGO and other members of the NEW YORK CITY POLICE DEPARTMENT, assaulted and battered and used excessive and unreasonable force against Plaintiff, RACHEAL WILLIAMS.

18. That on March 8, 2023, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. LUIS D. SANDRES, P.O. ANDREA NIEVESSANTIAGO and other members of the NEW YORK CITY POLICE DEPARTMENT, acting the court of their employment as police officers, and under color of law, and without legal cause of justification arrested the Plaintiff, RACHEAL WILLIAMS causing plaintiff to be handcuffed and imprisoned and causing plaintiff to sustain serious permanent injuries.

19. The Defendants, THE CITY OF NEW YORK, P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO their agents, servants, and/or employees, while acting within the scope of their employment with defendant THE CITY OF NEW YORK, were negligent, reckless and careless in causing Plaintiff serious personal injuries.

20. By reason of the unprofessional and improper acts of Defendants THE CITY OF NEW YORK, P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO, their agents, servants and/or employees, the Plaintiff, RACHEAL WILLIAMS suffered mental shock, mental anguish and psychological trauma and was otherwise injured.

21. Plaintiff RACHEAL WILLIAMS was arrested and incarcerated without cause or justification and without due process of law.

22. Plaintiff RACHEAL WILLIAMS was forced to associate and mingle with persons accused of serious crimes, drug addicts and persons of low reputation, all against her will and without cause or justification, all of which caused the Plaintiff shame and humiliation. Plaintiff RACHEAL WILLIAMS was caused to be sick, unwell and was unlawfully denied his liberty and freedom.

AS AND FOR A THIRD CAUSE OF ACTION

23. Plaintiff RACHEAL WILLIAMS repeats and realleges each and every allegation contained above as though fully set forth at length herein.

24. That by reason of the aforesaid assault and battery and use of excessive and unreasonable force, Plaintiff RACHEAL WILLIAMS was deprived of her rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including her rights under the Fourth Amendment to be free from unreasonable searches and seizures, and his rights pursuant to 42 USC § 1983 by those, including P.O. LUIS D. SANDRES

and P.O. ANDREA NIEVESSANTIAGO who under color of a statute or regulation of a state, caused the plaintiff to be so deprived, thereby resulting in the aforementioned damages to the plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION

25. Plaintiff RACHEAL WILLIAMS repeats and realleges each and every allegation contained above as though fully set forth at length herein.

26. That on March 8, 2023, in the County of Kings, City and State of New York, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, including P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO and other members of the NEW YORK CITY POLICE DEPARTMENT, wrongfully and falsely arrested the Plaintiff and then caused the Plaintiff to wrongfully be detained and imprisoned.

27. That the aforesaid arrest, detention, and imprisonment was caused by THE CITY OF NEW YORK, its agents servants and/or employees, including P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO without a warrant and without any reasonable or probable cause or belief that the Plaintiff was in fact guilty of any crime.

28. That defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, while acting in their official capacity as agents, servants and/or employees of defendant, THE CITY OF NEW YORK, and without any just or cause or provocation and under the color of their authority, brought the plaintiff to the police precinct and maliciously and fraudulently caused charges to be entered in the Courts against the plaintiff; said defendants knew said charges were totally false and untrue and said defendants made false and fraudulent charges and maliciously prosecuted the plaintiff to protect and conceal their own vicious criminal acts upon the plaintiff as heretofore alleged.

29. The charges against the Plaintiff, RACHEAL WILLIAMS were dismissed in Criminal Court, Kings County.

30. That by reason of the false arrest, imprisonment and detention, the Plaintiff RACHEAL WILLIAMS was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body, and to sustain economic loss and other damages.

AS AND FOR A FIFTH CAUSE OF ACTION

31. Plaintiff RACHEAL WILLIAMS repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That by reason of the aforesaid false arrest and imprisonment, Plaintiff RACHEAL WILLIAMS was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including her rights under the Fourth, Fifth and Fourteenth Amendment to be free from unreasonable searches and seizures and his rights pursuant to 42 USC § 1983 by those, including P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO, who under color of a statute or regulation of a state, caused Plaintiff to be so deprived, thereby resulting in the aforementioned damages.

AS AND FOR A SIXTH CAUSE OF ACTION

33. Plaintiff RACHEAL WILLIAMS repeats and realleges each and every allegation contained above as though fully set forth at length herein.

34. That the aforesaid assault and battery and false arrest and imprisonment perpetrated by P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO and the other involved police officers were the result of the negligence of THE CITY OF NEW YORK in its hiring,

supervision, training, and retention of P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO and the other involved police officers.

AS AND FOR A SEVENTH CAUSE OF ACTION

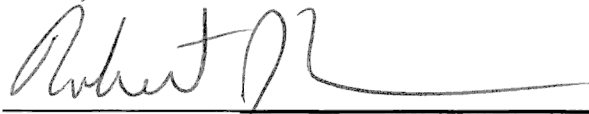
35. Plaintiff RACHEAL WILLIAMS repeats and realleges each and every allegation contained above as though fully set forth at length herein.

36. That THE CITY OF NEW YORK's hiring, supervision, training, and retention of P.O. LUIS D. SANDRES and P.O. ANDREA NIEVESSANTIAGO arose to the level of deliberate indifference to the consequences of its actions, and indifference to the Plaintiff's rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, and her rights pursuant to 42 USC § 1983.

WHEREFORE, plaintiff demands judgment against the defendants, and each of them, on the aforementioned causes of action, for compensatory damages in the sum of FIVE MILLION DOLLARS (\$5,000,000), and for punitive damages in an amount to be determined by the trier of fact, together with attorney's fees pursuant to 42 USC § 1988, and together with the costs and disbursements of this action.

Dated: Brooklyn, New York
March 20, 2024

Yours, etc.



Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
RACHEAL WILLIAMS
50 Court Street, Suite 1001
Brooklyn, NY 11201
(718) 422-1003
File No.: 23-078

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK,

SS:

COUNTY OF KINGS,

Racheal Williams being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: BROOKLYN, NEW YORK
March 20, 2024

X 

Subscribed and sworn to before me 3/20/24


NOTARY PUBLIC

ROBERT J. RENNA
Notary Public, State of New York
No. 02RE6095897
Qualified in Kings County
Commission Expires July 21, 2027

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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RACHEAL WILLIAMS,

Plaintiff(s),

-against-

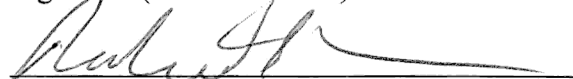
THE CITY OF NEW YORK, P.O. LUIS D. SANDRES AND P.O. ANDREA
NIEVESSANTIAGO,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Robert J. Renna, P.C.
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50 Court Street Suite 1001
Brooklyn, New York 11201
(718) 422-1003

Signature (Rule 130-1.1-a)


ROBERT J. RENNA, ESQ.